

and elsewhere in Ireland a district inspector of the Royal Irish Constabulary, and the expression "licensing justices" means, as respects the police district of Dublin metropolis, the Recorder of the city of Dublin, and, as respects any other licensing district, two or more justices at petty sessions.

(4) This Act may be cited as the Intoxicating Liquor (Temporary Restriction) Act, 1914.

(5) This Act shall remain in force during the continuance of the present war, and for a period of one month after the close thereof.

CHAPTER 78.

An Act to give, in connexion with the present War, further powers to Courts in relation to the remedies for the recovery of money, and in relation to other similar matters. [31st August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power of
courts to defer
execution, &c.

1.—(1) From and after the passing of this Act no person shall—

- (a) proceed to execution on, or otherwise to the enforcement of, any judgment or order of any court (whether entered or made before or after the passing of this Act) for the payment or recovery of a sum of money to which this subsection applies, except after such application to such court and such notice as may be provided for by rules or directions under this Act; or
- (b) levy any distress, take, resume, or enter into possession of any property, exercise any right of re-entry, foreclose, realise any security (except by way of sale by a mortgagee in possession), forfeit any deposit, or enforce the lapse of any policy of insurance to which this subsection applies, for the purpose of enforcing the payment or recovery of any sum of money to which this subsection applies, or, in default of the payment or recovery of any such sum of money, except after such application to such court and such notice as may be provided for by rules or directions under this Act.

This subsection shall not apply to any sum of money (other than rent not being rent at or exceeding fifty pounds per annum) due and payable in pursuance of a contract made after the

beginning of the fourth day of August nineteen hundred and fourteen.

This subsection applies to life or endowment policies for an amount not exceeding twenty-five pounds, or payments equivalent thereto, the premiums in respect of which are payable at not longer than monthly intervals, and have been paid for at least the two years preceding the fourth day of August nineteen hundred and fourteen.

(2) If, on any such application, the court to which the application is made is of opinion that time should be given to the person liable to make the payment on the ground that he is unable immediately to make the payment by reason of circumstances attributable, directly or indirectly, to the present war, the court may, in its absolute discretion, after considering all the circumstances of the case and the position of all the parties, by order, stay execution or defer the operation of any such remedies as aforesaid, for such time and subject to such conditions as the court thinks fit.

(3) Where a bankruptcy petition has been presented against any debtor, and the debtor proves to the satisfaction of the court having jurisdiction in bankruptcy that his inability to pay his debts is due to circumstances attributable, directly or indirectly, to the present war, the court may, in its absolute discretion, after considering all the circumstances of the case and the position of all the parties, at any time stay the proceedings under the petition for such time and subject to such conditions as the court thinks fit.

(4) This Act shall apply to all proceedings for the recovery of possession of tenements under the Small Tenements Recovery Act, 1838, as if they were in all cases proceedings for the payment or recovery of a sum of money due and payable on account of rent. 1 & 2 Vict.
c. 74

(5) The Lord Chancellor may make such rules and give such directions as he thinks fit for the purpose of giving full effect to this Act, and may, by those rules or directions, provide for any proceedings for the purposes of this Act being conducted, so far as desirable, in private and for the remission of any fees.

(6) The powers given under this Act shall be in addition to, and not in derogation of, any other powers of any court.

(7) Nothing in this Act shall affect any right or power of pawnbrokers to deal with pledges, or give any power to stay execution or defer the operation of any remedies of a creditor in the case of a sum of money payable by, or recoverable from, the subject of a Sovereign or State at war with His Majesty.

(8) Any stay of execution or of other proceedings, and any postponement of the operation of the remedies of a creditor, which has been granted or ordered by any court since the commencement of the present war and before the passing of this

Act, shall be as valid as if this Act had been in operation when the stay or postponement was granted or ordered.

Short title,
application,
and duration,

2.—(1) This Act may be cited as the Courts (Emergency Powers) Act, 1914.

(2) In the application of this Act to Scotland the Court of Session shall be substituted for the Lord Chancellor; "Act of Sederunt" shall be substituted for "rules"; "a petition for sequestration" shall be substituted for "a bankruptcy petition"; "diligence" shall be substituted for "execution"; and "decree" shall be substituted for "judgment or order," and shall be deemed to include any warrant authorising diligence; "creditor in a heritable security" shall be substituted for "mortgagee"; and "proceedings in removings and ejections in the case of" "subjects let at a rent not exceeding twenty-one pounds" shall be substituted for "proceedings for the recovery of possession of" "tenements under the Small Tenements Recovery Act, 1838."

(3) In the application of this Act to Ireland the Lord Chancellor of Ireland shall be substituted for the Lord Chancellor.

(4) His Majesty may, by Order in Council, at any time determine the operation of this Act, or provide that this Act shall have effect subject to such limitations as may be contained in the Order; but, subject to the operation of any such Order in Council, this Act shall have effect during the continuance of the present war, and for a period of six months thereafter.

CHAPTER 79.

An Act to provide for the exercise of Prize Jurisdiction by certain British Courts in Egypt, Zanzibar, and Cyprus, in respect of the present War.

[18th September 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Prize Courts
in Egypt,
Zanzibar, and
Cyprus.

1. If His Majesty is pleased to confer jurisdiction in matters of prize on any of the following courts, that is to say:—

- (a) His Britannic Majesty's Supreme Court for the Dominions of the Sublime Ottoman Porte in Egypt;
- (b) His Britannic Majesty's Court for Zanzibar in Zanzibar;
- (c) The Supreme Court of Cyprus in Cyprus;

the Court shall, in respect of the present war, have, under the Naval Prize Courts Acts, 1864 to 1914, the jurisdiction thereby conferred on a Vice-Admiralty Prize Court, and those Acts and